

COMBINED SE

By KW NARA, Date 7-17-03

MEETING

Thursday, October 15, 1970

Time and Place: 3:25 p.m. - 4:15 p.m., White House Situation Room

Subject: Middle East

Participants:

Chairman - Henry A. Kissinger

JCS - Adm. Thomas Moorer
Adm. Mason B. Freeman

State - U. Alexis Johnson
Roy Atherton
Arthur Hartman

NSC Staff - Harold Saunders
Col. Richard Kennedy
Jeanne W. Davis

Defense - David Packard
G. Warren Nutter
James Noyes

CIA - Lt. Gen. Robert Cushman
David H. Blee

SUMMARY OF DECISIONS

It was agreed that:

-- a continuation of a de facto cease-fire would not be unfavorable;

-- State should begin work on a new formula for getting talks started, not necessarily linked to the June proposal or to the cease-fire;

-- the NSC Staff, in consultation with State, should prepare a paper on a Palestinian solution with our options, and the implications for Jordan and King Hussein.

By KW NARA, Date 7-17-03

Mr. Kissinger: We have three areas for consideration. An assessment of the situation; possible extension of the cease-fire; and how to move toward peace. This paper, which is very good, identifies the practical problems of how to keep the cease-fire going and how to move the situation toward negotiations. How do we assess the situation in relation to the stand-still violations and the events of the last few weeks? How have these affected the cease-fire?

Mr. Johnson: The Secretary and Joe Sisco are seeing Riad at 5:00 p.m. today and we will know better after that conversation. We seem now to be moving toward a de facto extension of the cease-fire which is not entirely unfavorable. It gives us an indefinite situation rather than the announced 90-day limitation. It seems easy to slide from the stand-still into a de facto situation.

Mr. Kissinger: Is it our judgment that neither side wants to resume hostilities?

Mr. Johnson: Yes.

Mr. Kissinger: This would take off the inhibitions of a cease-fire but would not remove the political restraints. From the Israeli point of view the most desirable situation would be a cease-fire without talks.

Mr. Johnson: In his talks with the Secretary, Eban has indicated they would be quite content with this.

Mr. Kissinger: Israel has come out very well. A cease-fire without progress toward peace confirms their situation. How long can the Arabs maintain a cease-fire under these conditions?

Mr. Atherton: For some months, I think.

Mr. Johnson: We haven't detected any Egyptian desire to renew the fighting -- quite the opposite.

Mr. Packard: It is the Palestinians or the Fedayeen who will start the trouble.

Mr. Kissinger: There are no restraints on them -- they are not affected by the cease-fire.

Mr. Johnson: We are all agreed that more work is needed on the Palestinian question. We have these two interesting intelligence reports this morning, indicating that the Fedayeen are setting up a Liberation Organization comparable to the Algerian Liberation Organization and that they are getting in shape to negotiate. Their program calls for recognition of the existence of the State of Israel and creation of a Palestinian State covering both banks of the Jordan.

By KW NARA, Date 2-17-03

A senior member of the Fatah has indicated that Fatah is forming a national front similar to the Algerian Organization on the grounds that the present Palestine Liberation Organization is unworkable. They plan to call a conference after Ramadan (October 31-November 29) announcing its formation. Other Fedayeen groups will be asked to join and put themselves under Fatah orders. This group would be the sole agent of the Palestinians and would undertake contacts with other governments. The Lebanese have agreed to recognize Fatah as their spokesman. Iraq is said to be the only country which has not accepted the proposal. They see the emergence of a new Palestinian State including the West Bank of the Jordan, Jerusalem, the East Bank west of a line/ ^{through the major cities,} and the Gaza Strip. Some areas would be demilitarized. They apparently do not seek the elimination of Israel-- only a reduction in its size.

Mr. Kissinger: What size?

Mr. Johnson: This is ambiguous. If this report is valid, it is the first time a Palestinian organization has been willing to accept the existence of the state of Israel and to organize itself for negotiations.

Mr. Atherton: This would leave Israel with a lot of desert.

Mr. Kissinger: On the first issue, is it our judgment that the cease-fire could best be extended in a de facto manner?

Mr. Johnson: Not necessarily "best", but the trend seems to be in that direction and it is not necessarily unfavorable.

Mr. Atherton: Israel would not agree to an extension of the cease-fire without rectification of the missile movement. They would prefer to let it lapse and base its observation on the UN resolution. The Egyptians would agree to an extension of the cease-fire only on the condition that the Israelis agree to resume the talks.

Mr. Johnson: Riad has said this explicitly. The reason for the Secretary seeing him today was that Riad is speaking tomorrow morning in the General Assembly and we expect he will introduce a resolution of some kind. The Secretary had hoped to exert some influence. We expect Riad to repeat the line that if there are no negotiations, there will be no formal extension of the cease-fire.

Mr. Kissinger: Is it our view that there is no need to request an extension of the cease-fire?

Mr. Johnson: We wouldn't go that far--we don't know enough.

Mr. Kissinger: Let's leave the tactics of extension of a cease-fire until after

By KW NARA, Date 7-17-03

The Secretary has spoken to Riad/ We can be prepared to let the November 5 slip and move into a de facto extension.

The IG paper identifies three possible options for extending the cease-fire: a unilateral US initiative, a Jarring initiative; and extension by tacit agreement. Why not a US-Soviet initiative?

Mr. Atherton: That would raise the question of the stand-still violations and would drive Israel up the wall.

Mr. Kissinger: They would be up the wall anyhow with extension of the cease-fire without rectification. Adding the USSR to the initiative would be no worse. I have been wondering what made the Soviets and Egyptians violate the stand-still so crudely. Could it be that this was a unilateral US initiative and they felt that we would have to take the blame for what happened afterwards? It seemed so unreasonable. Anyone could have predicted that the talks would deadlock. It would have made sense for them to violate the stand-still during a deadlock. Why did they move in at midnight on August 7? I could understand such movement in the first week following the standstill, but why did it continue and escalate?

Mr. Johnson: I agree. It looked for a while as though they were slowing down, but it built back up again.

Admiral Moorer: I still think they have just followed their original plan to set up a missile pattern.

Mr. Kissinger: What if Israel had continued bombing? How much would this have slowed them up?

Admiral Moorer: It would have slowed them up but Israel would have suffered significant losses.

Mr. Packard: It is a lot more effective for them to build additional sites than it is to move in additional equipment. They can then move their missiles around.

Mr. Johnson: This is their formal position of course.

Mr. Kissinger: But we have identified 30-odd entirely new sites with equipment.

Admiral Moorer: They argue that the equipment was already in storage inside the stand-still zone.

By KW NADA, Date 2-17-03

Mr. Packard: And we can't prove that they brought in new equipment.

Mr. Johnson: The terms of the agreement were very explicit though.

Admiral Moorer: They claim they didn't move new missiles into the zone.

Mr. Johnson: The agreement didn't refer to missiles -- it referred to new military installations.

Mr. Kissinger: The language of the cease-fire agreement was explicit and the intent was obvious.

Mr. Johnson: And they had our additional explanation.

Mr. Kissinger: So you don't think a joint US-Soviet initiative would be good?

Mr. Atherton: No, I would have reservations.

Mr. Packard: If we could get a de facto cease-fire, we then might get some talks underway.

Admiral Moorer: Egypt can't organize itself to the point of initiating a break in the cease-fire at this time.

Mr. Johnson: No, we see no signs of an Egyptian offensive.

Mr. Kissinger: On the main problem of a strategy for furthering a settlement, the paper identifies six options.

Mr. Johnson: We are on the fifth option today -- marking time on all fronts. We are in a holding action.

Mr. Kissinger: Leaving aside the question of timing, we have option 1 -- partial rectification; option 2 -- press Israel to talk without rectification; option 3 -- resume the two-power or four-power talks; option 4 -- turn to a Palestine solution; option 5 -- a holding action; and option 6 -- the opposite of option 3 -- suspend US participation in four-power talks. I do not find these mutually exclusive. We can still explore a Palestinian solution while some other things are going on. One point has not been raised. The IG paper assumes continuation of negotiations in the June frame-work. Is it conceivable that we would say at some point that the June basis for an agreement had been overtaken by events and we should look for a new basis and find a new formula for getting talks started?

By KW NARA, Date 7-17-03

Mr. Johnson: We could move into that if we move into a de facto cease-fire.

Mr. Kissinger: Should we rule out doing something of this sort at an appropriate time after November 5?

Mr. Johnson: No, not at all.

Mr. Packard: I think this is a likely course.

Mr. Kissinger: What sort of proposal could we make? Could we do some work on such a proposal? As long as a settlement is linked to a cease-fire Israel will demand total rectification which is absurd. What do we mean by partial rectification? A 20-kilometer zone would be a phony. It would be too tight for Israel and would just lead to endless discussion.

Mr. Saunders: At one time we talked about 23 sites within 25 kilometers of the zone, with half of them within 20 kilometers. This meant 15 sites occupied and operational.

Mr. Atherton: We have 34 sites now, with 25 occupied.

Mr. Kissinger: I am not opposed to partial rectification but does it get us anywhere?

Admiral Moorer: The arguments will never be settled.

Gen. Cushman: This just increases the problems of verification.

Mr. Nutter: How about a proposal to demilitarize 25 kilometers on both sides of the Canal.

Mr. Johnson: Why would Israel take that?

Mr. Kissinger: Israel killed the idea of a 25-kilometer zone.

Mr. Nutter: We have indications from the Israeli military that they might consider it.

Mr. Kissinger: I don't believe Israel would accept it.

Mr. Nutter: We have indications that if there were an attack, Israel might withdraw its outposts anyway. They might be willing to demilitarize now.

Mr. Johnson: If Egypt accepts that, the game's over -- they would have no hope of getting back. This would open the Canal.

By KW 7-17-03

Mr. Nutter: That would depend on what the Egyptians really want. They may want a way out.

Mr. Kissinger: I doubt Israel would accept. They already have the stand-still zone. They would be getting half of the present zone, and withdrawing as well.

Mr. Nutter: It would get the missiles out.

Mr. Kissinger: But they shouldn't have been there in the first place. The stand-still was sold on the basis of only 3 missile sites and none within 25 kilometers. Israel doesn't object to a cease-fire without negotiations. Why should Israel pay a price to get negotiations started? They think they should be paid a price. Their first price is rectification. If they are offered rectification, they will find another price. They don't see themselves doing anything to get negotiations started. They are in the best possible situation with a cease-fire and no negotiations.

Mr. Nutter: This would be one way of getting a more satisfactory cease-fire.

Mr. Saunders: The Egyptians might object even more than the Israelis.

Mr. Kissinger: The Egyptians might take it as a way into negotiations, but Israel would have no reason to take it. If rectification is dropped, we would need a new basis for negotiations. What would be a new basis? Unconditional negotiations?

Mr. Atherton: That would be ideal. Or negotiations without necessarily being linked to the US initiative.

(Mr. Packard left the meeting)

Mr. Atherton: If Israel were released from the limited cease-fire, they would retain more military flexibility, particularly if it were not linked to the Jarring mission or to the formal commitments under the June proposal.

Mr. Saunders: We could start from scratch. What incentive would Israel have to go into new talks unless they really want talks? They couldn't do it without a major fight within Israel. Also, given Nasser's death and the situation in Jordan, they would have no one solid to talk to.

Mr. Kissinger: One way to get to this may be the de facto cease-fire. Would we then give up any linkage between the cease-fire and negotiations, and then propose new negotiations.

SECRET/NODIS

By KW

7-17-03

Mr. Atherton: Yes.

Mr. Kissinger: Tsarapkin took the view that they had never agreed to any cease-fire therefore they couldn't violate it. We could claim that we were not linking negotiations to a cease-fire. Would it be appropriate to advance that theory at some point?

Mr. Saunders: After November 5.

Mr. Kissinger: If we press for a formal extension of the cease-fire, Israel will insist on rectification and the Arabs will insist on talks. This is a prescription for an impasse. If we continue a de facto cease-fire without a formal linkage, we can propose talks on their merits. What would be wrong with that?

Mr. Saunders: What incentive would Israel have to volunteer for this process?

Mr. Kissinger: Under this procedure, the terms of reference would be defined by our side. Unless something different emerges from the Secretary's talk with Gromyko, it may be in our interest to play this in a low key. That is the Secretary's inclination. We can probably get a de facto extension of the cease-fire. Neither side would resist particularly if the US and the Soviet both indicated they wanted it extended.

Mr. Atherton: And we could, over time, press toward talks.

Mr. Nutter: What will the Egyptians be doing in the meantime.

Mr. Johnson: They will continue to strengthen their position.

Mr. Saunders: We have a month before these pressures would become too great, given Ramadan and the GA debate. We would be okay for a month.

Mr. Kissinger: The advantage to Israel would be that they would be released from the June formula. The advantage to the Arabs would be that they would not have to agree to a formal cease-fire. The pressures on Israel would be that if they don't agree to talk, they would give up their already waning international support.

Mr. Atherton: They would also run the risk that the shooting will start again.

Mr. Kissinger: Yes, the Arabs cannot accept a permanent cease-fire. What about Option 1 (partial rectification)?

SECRET/NODIS

By KW NARA, Date 7-17-03

Mr. Johnson: This is a non-starter. I assume the Secretary will take this position this afternoon with Riad although he will make no specific proposal.

Mr. Atherton: No, the Secretary will say to Riad "you created this problem -- what do you offer as a means of solving it?" He will probe for any ideas.

Mr. Kissinger: Option 2 (pressing Israel to begin talks without rectification) would be possible only under conditions of a de facto cease-fire.

Mr. Johnson: I agree.

Mr. Kissinger: What about resumption of the two-power or four-power negotiations?

Mr. Johnson: That would be a subsidiary development.

Mr. Kissinger: One thing which has not been addressed is the Palestinian solution. Can we get a paper indicating what we mean by this?

Mr. Johnson: We recognize the need for such a study.

Mr. Kissinger: Assuming we have a de facto cease-fire, and assuming King Hussein and the Egyptians are not strong enough to make a settlement-- would the Palestinians be strong enough to make a settlement?

Mr. Johnson: That implies the Palestinians would be willing to discuss a settlement.

Mr. Atherton: We have three new factors: the death of Nasser, the alienation of the Palestinians from Hussein and the involvement of Tunisia and others in the Palestinian problem in the context of the Arab conference. They have become involved in this for the first time; they are beginning to see it as a political problem, not an abstraction.

Mr. Kissinger: What does their identity as Palestinians entail? How would we establish contact with them? What would be the implications? Would this be seen as a way of scuttling Hussein?

Mr. Atherton: It would probably lead to partition if not the disappearance of Jordan.

Mr. Kissinger: And that is what we went to the brink to avoid.

By KW NARA, Date 7-17-03

Mr. Saunders: It's not that clear-cut. Israel may be happy to turn over the West Bank to this group.

Mr. Kissinger: This group has the maximum incentive to settle and the maximum potential to upset King Hussein.

Mr. Atherton: The Palestinians are in considerable confusion -- they had lost their bearings. This may crystallize their loyalty and sense of identity.

Mr. Saunders: They didn't have all that many collective bearings to lose-- they were never clear as to their objective.

Mr. Atherton: The Arabs would be glad to accept part of Palestine at the expense of part of Jordan.

Mr. Kissinger: We need a Palestinian paper with the options. (to Saunders) Let's get on paper the tentative conclusions of this discussion. We can wait until we hear the outcome of the Secretary's talks with Riad and Gromyko and then consult with State.